

D. White

Date: *March 4, 2014*

CITY OF CHEYENNE RESOLUTION NO. _____

LARAMIE COUNTY RESOLUTION NO. _____

ENTITLED: "A RESOLUTION ADOPTING *PLANCHEYENNE: REFLECTIONS AND PROGRESS*, AS THE COMMUNITY PLAN FOR THE CITY OF CHEYENNE, THE COMPREHENSIVE PLAN FOR PORTIONS OF LARAMIE COUNTY, AND THE TRANSPORTATION MASTER PLAN FOR THE CHEYENNE URBAN AREA."

RECITALS

WHEREAS, Wyo. Stat. Ann. § 9-8-301 mandates that all local governments shall develop a local land use plan; and

WHEREAS, Wyo. Stat. Ann. § 15-1-503 allows each incorporated municipality to adopt a master plan for the physical development of the municipality; and

WHEREAS, Wyo. Stat. Ann. § 18-5-202 allows each board of county commissioners to adopt and amend a comprehensive plan to promote the public health, safety, and general welfare of the unincorporated areas of the county; and

WHEREAS, 23 U.S. 134(i) (1) (A) and (i) (B) (ii) require the Metropolitan Planning Organization to prepare and update a transportation plan every five years; and

WHEREAS, 23 CFR § 450.322 requires Metropolitan Planning Organizations to prepare a Master Transportation Plan which must include provisions relating to the development of a transportation plan addressing at least a twenty (20) year planning horizon. The plan must include both long-range and short-range strategies and actions leading to the development of an integrated intermodal transportation system that facilitates the efficient movement of people and goods; and

WHEREAS, *PlanCheyenne: Reflections And Progress* amends the Community, Land Use and Transportation Plan of PlanCheyenne which was adopted by the Board of County Commissioners of Laramie County, Wyoming, by Resolution #061107-05 and by the Governing Body of the City of Cheyenne by Resolution #4883 adopted in November, 2006; and

WHEREAS, *PlanCheyenne: Reflections And Progress* also amends portions of the Laramie County Comprehensive Plan of which *PlanCheyenne*, 2006 was a part; and

WHEREAS, *PlanCheyenne: Reflections And Progress* was developed under the processes required by state law for the adoption and amendment of master plan or comprehensive plan; and

WHEREAS, *PlanCheyenne: Reflections And Progress* was prepared with citizen participation and was discussed at twelve MPO Citizen Steering Committee meetings and ten MPO Technical Committee meetings; and

WHEREAS, status reports regarding the proposed amendments to *PlanCheyenne* were provided to elected officials of the City of Cheyenne and the County of Laramie during two presentations, status reports were provided to the City of Cheyenne Planning Commission during three of its meetings, and status reports were provided to the Laramie County Planning Commission during three of its meetings; and

WHEREAS, status reports regarding the proposed amendments to *PlanCheyenne* were presented to the public at five community meetings, which were preceded by newspaper advertisements, and

WHEREAS, the proposed amendments to *PlanCheyenne* were presented to the public through an interactive website which was used by over 400 individuals to post comments; and

WHEREAS, a thirty (30) day public comment period was advertised on January 3, 2014 announcing two Public Hearings which were conducted by the City of Cheyenne Planning Commission on February 3, 2014 and the Laramie County Planning Commission on February 13, 2014, and included the various means for citizens to review the proposed amendments to *PlanCheyenne* and to provide comments; and

WHEREAS, the City of Cheyenne Planning Commission accepted and considered public comments, has recommended the adoption of *PlanCheyenne: Reflections And Progress* and has certified the same to Governing Body of the City of Cheyenne for approval in the form attached to this resolution as Exhibit A; and

WHEREAS, the Laramie County Planning Commission accepted and considered public comments, has recommended the adoption of *PlanCheyenne: Reflections And Progress* and has certified the same to the Board of County Commissioners of Laramie County, Wyoming in the form attached to this resolution as Exhibit A; and

WHEREAS, the form of *PlanCheyenne: Reflections And Progress*, attached hereto as Exhibit A reflects changes that were made in response to public comments and in response to concerns raised by the Governing Body of the City of Cheyenne and the Board of County Commissioners of Laramie County during the public comment processes described above; and

WHEREAS, the form of *PlanCheyenne: Reflections And Progress*, attached hereto as Exhibit A also provides an outline of the proposed language and technical changes recommended by staff to the Final Draft Plan dated January 3, 2014; and

WHEREAS, many comments have been received in regard to the proposed action on Plan Cheyenne *Reflections and Progress* and the Governing Body wishes to inform and clarify its position and the nature of the Comprehensive plan with the citizens and interested parties:

FINDINGS

THE GOVERNING BODY OF THE CITY OF CHEYENNE HEREBY FINDS AND CONCLUDES:

1) The Wyoming Supreme Court has repeatedly held that:

Zoning is the process that a community employs to legally control the use which may be made of property and the physical configuration of development upon the tracts of land located within its jurisdiction. The legislative division of the community allows only certain designated uses of land so that the community may develop in an orderly manner in accordance with a comprehensive plan. Planning is the establishment of an overall concept for the future physical development of the total area and services of the community. Planning, therefore, is more than a suggested pattern of land use; it involves the planning of all the usual public improvements and services which go into making up the community.” Ford v. Bd. of Cnty. Comm'rs of Converse Cnty. 924 P.2d 91, 94-95 (Wyo. 1996)

2) The process by which comprehensive plans are adopted and recommended by Planning Commissions and then in turn adopted by County Commissioners and local governments has been found to be constitutional by the Wyoming Supreme Court. See, Carter v. Bd. of Cnty. Comm'rs of Laramie Cnty. 518 P.2d 142, 144-45 (Wyo. 1974)

3) The Governing Body of the City of Cheyenne is well aware of and shares the concern of citizens in regard to the tension between private property rights and governmental regulation such as zoning. It is, has been, and will continue to be, the intent and focus of Cheyenne City government to operate what regulatory structure it has in a manner which is responsive to and respectful of all private property rights and market forces.

4) It is further the intent of the Governing Body of the City of Cheyenne that the operation of its Planning Office and its Building Department and other City entities be conducted in such a manner that private property rights are respected, development and entrepreneurial-ship encouraged rather than hindered, and that any regulation of land use be clearly for the purpose of orderly development and the protection of general health and welfare of the community, rather than regulation for its own sake, or to further the goals of any other entity or organization. The City of Cheyenne understands and will continue to operate its planning and development processes in a manner which regards the purpose and application of regulation to be the protection of the property rights of *all* the citizens of Laramie County.

5) The Governing Body of the City of Cheyenne in issuing its resolution approving Plan Cheyenne, *Reflections and Progress*, wishes to stress that “Plan Cheyenne” is a comprehensive plan, not land use regulation. The law in regard to the effect of a comprehensive plan in the State of Wyoming is clear. The State Supreme Court has held that, “A Comprehensive plan should not be confused with, or used as a substitute for, comprehensive zoning, nor may a comprehensive plan be equated with comprehensive zoning in legal significance. (holding that, while a comprehensive plan is helpful in guiding the harmonious development of a municipality, a city is not bound by the zoning recommendations in a master plan). A comprehensive plan is merely a policy statement which is implemented by zoning enactment.” Ford at 95 (emphasis added)

RESOLVED

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, AND THE BOARD OF COUNTY COMMISSIONERS OF LARAMIE COUNTY, WYOMING, THAT:

1. *PlanCheyenne: Reflections And Progress* is adopted as the community plan for the City of Cheyenne, Wyoming, as the comprehensive plan for those unincorporated portions of Laramie County, Wyoming, within the MPO Planning Boundary and as the Transportation Master Plan for the Cheyenne Urban Area, and
2. That in adopting Plan Cheyenne, Reflections and Progress, the Governing Body holds that this comprehensive plan is a general and malleable policy statement, not binding legislation and shall serve as a guideline to policy and implementation of land-use regulation not a mandatory statement of same. The Governing Body considers private property rights and market forces paramount in any discussion of land use, and
3. The Parks and Recreation Master Plan of PlanCheyenne, 2006 is not affected by this resolution.

FOR THE CITY OF CHEYENNE:

PRESENTED, READ, AND ADOPTED ON THIS ____ DAY OF _____, 2014.

Richard L Kaysen, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk

FOR LARAMIE COUNTY:

PRESENTED, READ, AND ADOPTED THIS ____ DAY OF _____, 2014.

BOARD OF LARAMIE COUNTY COMMISSIONERS

Diane Humphrey, Chair

ATTEST:

Debra K. Lathrop, Laramie County Clerk